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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

DATED: 14-10-2026

CORAM

THE HON'BLE MR JUSTICE B.PUGALENDHI

WP(MD) No. 29116 of 2026

CNR:{HCMD011444202026}

Case QR

and

WMP(MD) No. 22092 of 2026

H.Mary Grace

..Petitioner(s)

Vs

1. The Additional Registrar/Managing Director,
   Tamil Nadu State Cooperative Agriculture And,
   Rural Development Bank Limited,
   No. 181, Lush Church Road,
   Mylapore,
   Chennai - 600 004.

2. The Joint Registrar of Cooperative Societies,
   O/o.The Joint Registrar Of Cooperative Societies,
   Madurai Region,
   Madurai.

..Respondent(s)

PRAYER: Writ Petition filed under Article 226 of the Constitution of India, praying this Court to issue a Writ of Certiorarified Mandamus to call for the records relating to the impugned order of transfer vide No.Pa.Pi/Ko.140/2026 dated 18.09.2026 passed by the 1st respondent and quash the same and consequently directing the 1st respondent to permit the petitioner to continue in Madurai Regional Office.

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For Petitioner(s) : Mr.D.Shanmugaraja Sethupathi
For Respondent(s) : Mr.J.Barathan,
Additional Advocate General assisted by
Mr.Selva Aditya,
Government Advocate for R2

: Mr.N.Suresh for R1

ORDER

The petitioner Assistant Manager of Tamil Nadu State Co-operative Agriculture Rural Development Bank Limited, has been transferred by the 1st respondent based on the communication of the 2nd respondent dated 18.09.2026 and the same has been challenged before this court.

2.The petitioner has been transferred on the ground that this petitioner has failed to attend the meeting conducted by the 2nd respondent dated 12.08.2026.

3.The learned counsel for the petitioner by referring to the certificate issued by the co-operative audit team submitted that the co-operative audit team has conducted concurrent audit in the petitioner's bank from 03.08.2026 till 14.08.2026. Since audit was conducted during the relevant period on 12.08.2026, the petitioner could not appear for the meeting conducted by the 2nd respondent, for which he has been penalised and transferred.

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4.Convinced with the reasons assigned by the petitioner, this court on 08.10.2026 ordered notice to the respondents and also directed the respondents to file written response.

5.In response to the earlier order, Mr.Suresh, learned counsel appearing for the 1st respondent / Managing Director submits that the petitioner has already been relieved from Madurai and the petitioner has also joined in transferred place and therefore, this writ petition has become infructuous.

6.The learned Additional Advocate General appearing for the 2nd respondent Joint Registrar submits that there is insubordination from the petitioner and the petitioner has not furnished the required data to the Managing Director.

7.This court has considered the rival submissions made.

8.The petitioner has been transferred from Madurai to Dindigul on certain allegations that too on deputation. The reason assigned in the impugned order is that the petitioner has failed to attend the meeting conducted on 12.08.2026. Admittedly, concurrent audit was conducted in the petitioner's office on the particular date. Therefore, the reason assigned in the impugned order cannot be sustained. Moreover, the petitioner has been posted on deputation without

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specifying the period of deputation and on this aspect also the impugned order suffers. It appears pursuant to the impugned order, the petitioner has joined in the transferred place.

9.In view of the above reasons, this writ petition is disposed of by setting the order impugned in this writ petition. The respondents are at liberty to pass fresh orders prescribing the period of deputation. No costs. Consequently connected miscellaneous petitions are closed.

14-10-2026

Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No

DSK

To

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B.PUGALENDHI, J.

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